

CONTRACT NO. \_\_\_\_\_

Approved as to  
form only:

Date: 4/2/18

MEMORANDUM OF UNDERSTANDING  
BETWEEN THE CITY OF CHEYENNE AND  
LARAMIE COUNTY SCHOOL DISTRICT NUMBER ONE

1. **Parties.** This Memorandum of Understanding ("MOU") is made and entered into by and between Laramie County School District Number One ("District"), whose address is 2810 House Avenue, Cheyenne, Wyoming 82001, and the City of Cheyenne ("City"), a municipality organized and existing under the laws of the State of Wyoming, whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001.
2. **Purpose.** The purpose of this MOU is to provide a means for the City to provide drainage improvements on Sunflower Road, adjacent to Buffalo Ridge Elementary School in conjunction with the District's drainage improvements on the Buffalo Ridge Elementary School Site.
3. **Term of MOU.** This MOU shall commence on the date when fully executed by all parties, and shall remain in full force and effect through November 1, 2018 or when construction is fully finished.
4. **Payment.** Upon receipt of an itemized invoice from the District, the City agrees to pay the District for the cost of construction of the Sunflower Road Drainage Improvements (Project). Such cost shall include, but not necessarily be limited to, materials, labor, and incidentals required to construct the Sunflower Road Drainage Improvements as determined by the accepted successful bidder. In no event will the total paid by the City to the District under this MOU exceed \$ 60,000.00 without modification to this MOU.
5. **Responsibilities of the District.** The District shall:
  - A. Provide the construction drawings for the Project to the City.
  - B. Supply bidding services for the Sunflower Road Drainage Improvements construction. The modifications on Sunflower Road shall be separated within the bid schedule such that the total construction cost for the City's portion of the Project is \$60,000.00, the District's portion is \$54,943.00.
  - C. Award the Project to the successful bidder.
  - D. Administer the Project, subject to the responsibility of the City below to inspect improvements on Sunflower Road.
  - E. Pay the successful contractor for work properly done on the Project, and seek reimbursement from the City for the improvements made on Sunflower Road.

6. **Responsibilities of the City.** The City shall:

A. Reimburse the District for the construction of the Drainage Improvements to Sunflower Road in accordance with Section 4 of this MOU.

7. **Special Provisions.**

A. Following the bidding of the Project by the District, the City shall participate in the review of the bids to determine the reasonableness of the bids associated with the Sunflower Road Drainage Improvements, based on industry standards.

B. The City shall notify the District within 48 hours following the bid review of the acceptability of the Sunflower Drainage Improvements.

8. **General Provisions.**

A. **Amendments.** Either party may request changes in this MOU. Any changes, modifications, revisions or amendments to this MOU which are mutually agreed upon by and between parties to this MOU shall be incorporated by written instrument, executed and signed by all parties to this MOU.

B. **Applicable Law.** The construction, interpretation and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this MOU and over the parties, and the venue shall be First Judicial District, Laramie County, Wyoming.

C. **Assignments.** This MOU shall be binding upon and inure to the benefit of the parties hereto and their respective heirs, successors, transferees, and permitted assignees. Neither party shall assign this agreement without the express written consent of the other.

D. **Availability of Funds.** Each payment obligation of either party is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services performed by either party, either party may terminate this MOU at the end of the period for which the funds are available. Each party shall notify the other party at the earliest possible time of the service which will or may be affected by a shortage of funds. No penalty shall accrue to either party in the event this provision is exercised, and neither party shall be obligated or liable for any future payments due for any damages as a result of termination under this section. This provision shall not be construed to permit either party to terminate this MOU in order to acquire similar services from another party.

E. **Entirety of Agreement.** This MOU, consisting of five pages, represents the entire and integrated agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.

F. Force Majeure. Neither party shall be liable to perform under this MOU if such failure arises out of causes beyond control without the fault or negligence of said party. Such causes may include, but are not limited to, Acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather.

G. Notices. All notices arising out of or from the provisions of this MOU shall be in writing and given to the parties either by regular mail or delivery in person.

H. Sovereign/Governmental Immunity. The City of Cheyenne and Laramie County School District Number One do not waive their sovereign/governmental immunity by entering into this MOU, and each fully retains all immunities and defenses provided by law with respect to any action based on or occurring as a result of this MOU.

I. Third Party Beneficiary Rights. The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this MOU shall not be construed so as to create such status. The rights, duties and obligations contained in this MOU shall operate only between the parties to this MOU, and shall inure solely to the benefit of the parties to this MOU. The provisions of this MOU are intended only to assist the parties in determining and performing their obligations under this MOU. The parties to this MOU intend and expressly agree that only parties signatory to this MOU shall have any legal or equitable right to seek to enforce this MOU, to seek any remedy arising out of a party's performance or failure to perform any term or condition of this MOU, or to bring an action for the breach of this MOU.

J. Insurance Requirements, Indemnification. The District shall include the following provisions in any contract it enters into for the construction of the Sunflower Road Drainage Improvements project described in this MOU.

1. The contractor engaged by the District to construct the Sunflower Road Drainage Improvements shall file a Certificate of Insurance with the City of Cheyenne verifying each type of insurance coverage listed below. (District insurance requirements are outlined in the Project Manual and are separate from the City's requirements).

2. The Certificate of Insurance shall be submitted to and approved by the City of Cheyenne prior to commencement of construction of the Sunflower Road Drainage Improvements project described in this MOU.

| 3. <u>Type of Coverage</u>                                                                                                                                                      | <u>Minimum Limits</u>      |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------|
| Commercial General Liability<br>(Including Products and Completed<br>Operations; Explosion, Collapse and<br>Underground if applicable to the<br>Hazards of a specific project.) | \$1,000,000 per Occurrence |
| Business Automobile Liability                                                                                                                                                   | \$2,000,000 Aggregate      |
| Workers' Compensation                                                                                                                                                           | \$1,000,000 CSL            |
| OR                                                                                                                                                                              | Statutory                  |

**Employer's Liability**

**\$500,000 Each Accident  
\$500,000 Each Disease-Policy  
Limit  
\$500,000 Disease/Each  
Employee**

4. It is understood and agreed that these insurance coverages are primary and not contributory. All policies providing the coverages required hereunder shall be in effect for the duration of the Sunflower Road Drainage Improvements project and for so long as any contract relating to the construction of said improvements remains in effect. It shall be an affirmative obligation upon the contractor to provide immediate written notification to the City of Cheyenne Risk Manager, City Clerk, and City Attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required hereunder.

5. The City of Cheyenne shall be named as additional insured on the Contractor's insurance policies, except workers' compensation, and the Contractor shall provide a copy of the endorsements providing this coverage.

6. The City has the right to reject a certificate of insurance if any company engaged by the contractor to provide any of the insurance coverages required hereunder is widely regarded in the insurance industry as financially unstable. Any insurance company providing coverage under this MOU shall have an A.M. rating of A, A- (excellent).

7. The City has the right to review the insurance certificates of any or all subcontractors used by the contractor. Further, the City requires that the subcontractor's insurance coverage be at least equivalent to that required of the contractor.

8. The City shall have the right to consult with the contractor's insurance agent for disclosure of relevant policy information, but the City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or contractor's obligations hereunder. Disclosure of relevant policy information would specifically involve, but is not limited to:

- a. Exclusions.
- b. Deductibles.
- c. Claims in progress which could significantly reduce the annual aggregate limit.

9. The contractor engaged by the District to construct the Sunflower Road Drainage Improvements as described in this MOU agrees to defend, hold harmless, and indemnify the City of Cheyenne, its officials, employees, agents, and authorized volunteers against any and all claims and costs, including attorney's fees, arising during or resulting from the contractor's performance of work relating to the Sunflower Road Drainage Improvements.

10. It is expressly understood and agreed that the City Engineer shall have the right under any contract entered into by the District for the construction of the Sunflower Road Drainage Improvements, as described in this MOU, shall have the right under applicable provisions of the Cheyenne City Code to observe and review the work and operations of the contractor, and the contractor shall indemnify and hold the City of Cheyenne, the City Engineer and their representative harmless from and against all suits, actions or claims of any character due to injuries or damages sustained by any person or party in consequence of any negligence in construction the said storm sewer improvements, the failure to observe safety standards and regulations, the use of unsafe or unacceptable construction practices or materials in the performance of the work or the contractor's failure to comply with any law, ordinance or regulation.

K. Signatures. In witness whereof, the parties to this MOU through their duly authorized representative have executed this MOU on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this MOU as set forth herein.

The effective date of this MOU is the date of the signature last affected to this page.

L. Counterparts. This MOU may be executed in any number of counterparts, each of which shall be deemed an original and all of which shall constitute one and the same instrument. It is understood that all parties need not sign the same counterpart.

LARAMIE COUNTY SCHOOL DISTRICT NUMBER ONE

\_\_\_\_\_  
Lynn Storey-Huyilar, Chair, Board of Trustees

\_\_\_\_\_  
Date

CITY OF CHEYENNE

\_\_\_\_\_  
Marian J. Orr, Mayor

\_\_\_\_\_  
Date

Date  
(SEAL)  
Attest:

\_\_\_\_\_  
Carol Intlekofer, City Clerk